

6. 9:00 AM CASE NUMBER: C24-00225
CASE NAME: MONICA DUARTE VS. JORGE FIGUEROA
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: FIGUEROA, JORGE

TENTATIVE RULING:

Summary

Defendants Sunshine Retirement Living LLC, Antioch Retirement Resident LP dba Quail Lodge Retirement Community and Jorge Figueroa's ("Defendants") Demurrer to Plaintiff's Second Amended Complaint is **sustained** without leave to amend.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), an opposition to a noticed motion must be filed and served at least nine (9) court days before the hearing. Here, the hearing on Defendants' Demurrer was noticed for March 4, 2026. Nine days before March 4, 2026 is February 19, 2026. No timely opposition was filed on February 19, 2026.

Plaintiff filed a late opposition on February 25, 2026. Counsel claims that he was not provided with timely notice of Defendants' Demurrer. However, the proof of service form filed by Defendants' counsel shows that he was served with this Demurrer on November 14, 2025 by electronic mail. +The Court finds that service was effectuated on Plaintiff's Counsel. Moreover, Counsel's Declaration accompanying Plaintiff's late filed opposition does not contain sufficient facts that support good cause for Counsel's failure to file the opposition timely.

A trial court has broad discretion to reject late-filed papers. (Cal. Rules of Court, rule 3.1300(d).) Plaintiff made no attempt to seek leave to file their opposition late, and made no attempt to demonstrate good cause for having failed to adhere to the applicable deadline. *Rancho Mirage Country Club Homeowners Assn. v. Thomas B. Hazelbaker* (2016) 2 Cal.App.5th 252, 261-262. Moreover, a trial court does not abuse its discretion by refusing to consider late-filed papers when a party makes no attempt to seek leave to file papers late and does not attempt to show good cause for the late filing. *Samaniego v. Empire Today, LLC* (2012) 205 Cal.App.4th 1138, 1146, which held party "provided no plausible explanation for its tardiness and the court acted within its discretion when it denied leave to file them." According to Counsel's declaration, he claims that he did not receive notice of the hearing on Defendants' demurrer to the Second Amended Complaint and happened to review the docket and realized that the demurrer was set for hearing. The Court does not consider the late-filed opposition filed by Plaintiff.

7. 9:00 AM CASE NUMBER: C24-03038
CASE NAME: JANE DOE 1 VS. SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT
*HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF MOSEBY'S AMENDED CROSS COMPLAINT
FILED BY: JANE DOE 1
TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 7 and 8.

1. Cross-Defendants' Jane Doe 1, Guardian Ad Litem of Jane Doe 1; Jane Doe 2; Parent of Jane Doe 2; Jane Doe 3, Guardian Ad litem of Jane Doe 3; Jane Doe 4 and Guardian Ad Litem of Jane Doe 4's ("Cross Defendants") unopposed Demurrer to Cross Complainant Nicholas Moseby's Amended Cross Complaint filed on November 3, 2025 is sustained without leave to amend.
2. Cross Defendants unopposed Motion to Strike Portions of Cross-Complainant Nicholas Moseby's Amended Cross-Complaint filed on November 3, 2025 is granted without leave to amend.
3. No appearance is required at the hearing on March 4, 2026.

Analyses

The Court finds that Cross-Complainant Nicholas Moseby failed to file a timely opposition to the Demurrer, which was due on February 17, 2026, which is nine (9) court days before the hearing of March 4, 2026. (Cal. Code of Civ. Proc. § 1005(b).

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].)

Moreover, California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion or demurrer is meritorious"); *Herzberg v. County of Plumas*, (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, "[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions." See <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>. Applied here, the Court finds that Defendant Moseby's failure to timely oppose the demurrer to his amended cross-complaint and failure to timely oppose the motion to strike is a deemed to be his consent to sustaining the demurrer and granting the motion to strike without leave to amend.

Ruling

1. Cross-Defendants' Jane Doe 1, Guardian Ad Litem of Jane Doe 1; Jane Doe 2; Parent of Jane Doe 2; Jane Doe 3, Guardian Ad litem of Jane Doe 3; Jane Doe 4 and Guardian Ad Litem of Jane Doe 4's ("Cross Defendants") unopposed Demurrer to Cross Complainant Nicholas Moseby's Amended Cross Complaint filed on November 3, 2025 is sustained without leave to amend. Cross-Defendants' counsel shall prepare and e-file a proposed order that conforms to this ruling no later than five (5) days from the date of this hearing, attaching a copy of this tentative ruling.
2. Cross Defendants unopposed Motion to Strike Portions of Cross-Complainant Nicholas Moseby's Amended Cross-Complaint filed on November 3, 2025 is granted without leave to amend. Cross-Defendants' counsel shall prepare and e-file a proposed order that conforms to this ruling no later than five (5) days from the date of this hearing, attaching a copy of this tentative ruling.
3. No appearance is required at the hearing on March 4, 2026.

8. 9:00 AM CASE NUMBER: C24-03038
CASE NAME: JANE DOE 1 VS. SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT
HEARING ON DEMURRER TO: MOSEBY'S AMENDED CROSS COMPLAINT
FILED BY: JANE DOE 1
TENTATIVE RULING:

See Line no. 7, above.

9. 9:00 AM CASE NUMBER: C24-03411
CASE NAME: JULIE ROMANOWSKI VS. AVI ELIAHU
***HEARING ON MOTION IN RE: QUASH OR ALTERNATIVELY MOTION FOR PROTECTIVE ORDER**
FILED BY: VAIL RESORTS MANAGEMENT COMPANY
TENTATIVE RULING:

Summary

Third Party Vail Resorts Management Company's Motion to Quash or in the alternative, Motion for Protective Order is granted as set forth herein.

Background

In this litigation, Plaintiff Julie Romanowski ("Plaintiff" or "Romanowski") alleges that Defendant Avi Eliahu ("Defendant" or "Eliahu") was recklessly skiing on December 24, 2022, while at Northstar California Ski Resort. Defendant collided with Plaintiff, causing her serious injuries, including shattering her pelvis, which resulted in a month stay at the hospital. The incident caused her to sustain significant damages.

On December 1, 2025, Romanowski served a Deposition Subpoena for Personal Appearance to the